

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

## SENATE ENROLLED ACT No. 271

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AN ACT to amend the Indiana Code concerning professions and occupations.

*Be it enacted by the General Assembly of the State of Indiana:*

SECTION 1. IC 25-37.5-1-0.7 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 0.7. (a) As used in this chapter, "telecommunications network wire" means:**

**(1) fiber; and**

**(2) cable consisting of six (6) or more twisted pairs of wire, with or without sheathing;**

**used in wireline or wireless communications service.**

**(b) The term includes wire described in subsection (a) from which the protective coating has been removed by smelting, burning, or melting.**

SECTION 2. IC 25-37.5-1-1, AS AMENDED BY P.L.222-2013, SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 1. (a) When used in this chapter, "valuable metal" means any product made of metal that readily may be resold. The term:**

**(1) includes metal bossies, telecommunications network wire, and small component motor vehicle parts; and**

**(2) does not include the following:**

**(A) A beverage can.**

**(B) Used jewelry regulated under IC 24-4-13.**

**(C) Precious metal regulated under IC 24-4-19.**



(b) As used in this chapter, "valuable metal dealer" means any individual, firm, corporation, limited liability company, or partnership engaged in the business of purchasing and reselling valuable metal either at a permanently established place of business or in connection with a business of an itinerant nature, including junk shops, junk yards, junk stores, auto wreckers, scrap metal dealers or processors, salvage yards, collectors of or dealers in junk, and junk cars or trucks. The term includes a core buyer. The term does not include a person who purchases a vehicle and obtains title to the vehicle.

(c) As used in this chapter, "purchase" means acquiring a valuable metal product for a consideration, but does not include purchases between scrap metal processing facilities (as defined in IC 8-23-1-36).

SECTION 3. IC 25-37.5-1-7, AS AMENDED BY P.L.70-2021, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. ~~(a)~~ A valuable metal dealer who fails to comply with this chapter commits a Class A infraction. **In addition, the valuable metal dealer may be subject to a criminal penalty under IC 35-43-4-3.3.**

~~(b) A valuable metal dealer who:~~

- ~~(1) knowingly or intentionally fails to comply with this chapter;~~
- ~~and~~
- ~~(2) purchases stolen valuable metal;~~

~~commits concealing a valuable metal purchase; a Level 6 felony.~~

SECTION 4. IC 25-37.5-1-11 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11. **A person may not sell or attempt to sell, and a valuable metal dealer may not purchase or attempt to purchase, telecommunications network wire in any amount, unless:**

- (1) the seller is an authorized agent, representative, or employee of a telecommunications provider, broadband provider, or public utility;**
- (2) the seller:**
  - (A) is authorized by the state to conduct business in Indiana;**
  - (B) is an employee or authorized agent of a business that, in the normal course of operations, handles salvaged telecommunications network wire, including building contractors and demolition firms; and**
  - (C) presents to the valuable metal dealer for inspection a valid certificate of existence or good standing issued by the state of Indiana;**



**(3) the seller holds an amateur radio service license issued by the Federal Communications Commission under 47 CFR, Part 97; or**

**(4) the seller is a retail seller that possesses a bill of sale, purchase receipt, or certificate of ownership signed by an employee of a telecommunications company stating that the seller is the lawful owner of the telecommunications network wire. This certificate of ownership must be provided on the telecommunications company's business letterhead and must provide the date on which the telecommunications network wire was acquired by the seller and a description of how the telecommunications network wire was acquired. A valuable metal dealer that purchases telecommunications network wire under this subdivision must maintain an electronic copy of the bill of sale, purchase receipt, or certificate of ownership provided by the retail seller for two (2) years.**

SECTION 5. IC 34-24-3-1, AS AMENDED BY P.L.276-2019, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. If a person has an unpaid claim on a liability that is covered by IC 24-4.6-5 or suffers a pecuniary loss as a result of a violation of **IC 25-37.5**, IC 35-43, IC 35-42-3-3, IC 35-42-3-4, IC 35-45-9, or IC 35-46-10, the person may bring a civil action against the person who caused the loss for the following:

- (1) An amount not to exceed three (3) times:
  - (A) the actual damages of the person suffering the loss, in the case of a liability that is not covered by IC 24-4.6-5; or
  - (B) the total pump price of the motor fuel received, in the case of a liability that is covered by IC 24-4.6-5.
- (2) The costs of the action.
- (3) A reasonable attorney's fee.
- (4) Actual travel expenses that are not otherwise reimbursed under subdivisions (1) through (3) and are incurred by the person suffering loss to:
  - (A) have the person suffering loss or an employee or agent of that person file papers and attend court proceedings related to the recovery of a judgment under this chapter; or
  - (B) provide witnesses to testify in court proceedings related to the recovery of a judgment under this chapter.
- (5) A reasonable amount to compensate the person suffering loss for time used to:
  - (A) file papers and attend court proceedings related to the recovery of a judgment under this chapter; or



- (B) travel to and from activities described in clause (A).
- (6) Actual direct and indirect expenses incurred by the person suffering loss to compensate employees and agents for time used to:
  - (A) file papers and attend court proceedings related to the recovery of a judgment under this chapter; or
  - (B) travel to and from activities described in clause (A).
- (7) All other reasonable costs of collection.

SECTION 6. IC 35-31.5-2-264.3 IS ADDED TO THE INDIANA CODE AS A **NEW SECTION TO READ AS FOLLOWS** [EFFECTIVE JULY 1, 2026]: **Sec. 264.3. "Purchase", for purposes of IC 35-43-4-3.3, has the meaning set forth in IC 25-37.5-1-1.**

SECTION 7. IC 35-31.5-2-345.5 IS ADDED TO THE INDIANA CODE AS A **NEW SECTION TO READ AS FOLLOWS** [EFFECTIVE JULY 1, 2026]: **Sec. 345.5. "Valuable metal", for purposes of IC 35-43-4-3.3, has the meaning set forth in IC 25-37.5-1-1.**

SECTION 8. IC 35-31.5-2-345.6 IS ADDED TO THE INDIANA CODE AS A **NEW SECTION TO READ AS FOLLOWS** [EFFECTIVE JULY 1, 2026]: **Sec. 345.6. "Valuable metal dealer", for purposes of IC 35-43-4-3.3, has the meaning set forth in IC 25-37.5-1-1.**

SECTION 9. IC 35-43-4-3.3 IS ADDED TO THE INDIANA CODE AS A **NEW SECTION TO READ AS FOLLOWS** [EFFECTIVE JULY 1, 2026]: **Sec. 3.3. (a) The following definitions apply throughout this section:**

- (1) "Purchase" has the meaning set forth in IC 25-37.5-1-1.
  - (2) "Valuable metal" has the meaning set forth in IC 25-37.5-1-1.
  - (3) "Valuable metal dealer" has the meaning set forth in IC 25-37.5-1-1.
  - (b) A valuable metal dealer who:
    - (1) knowingly or intentionally fails to comply with IC 25-37.5-1; and
    - (2) purchases stolen valuable metal;**commits concealing a valuable metal purchase, a Level 6 felony.**
- SECTION 10. IC 35-52-25-61.5 IS **REPEALED** [EFFECTIVE JULY 1, 2026]. **Sec. 61.5: IC 25-37.5-1-7 defines a crime concerning valuable metal dealers.**



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President of the Senate

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President Pro Tempore

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Speaker of the House of Representatives

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Governor of the State of Indiana

Date: \_\_\_\_\_ Time: \_\_\_\_\_

